POLITICS OF GOVERNORS

THE COUNTRY'S TOP COURT SETS A TIMELINE FOR THE PROCESSING OF STATE GOVERNMENT BILLS TO PREVENT GOVERNORS FROM STALLING LEGISLATIVE BUSINESS INDEFINITELY

By **KAUSHIK DEKA** / *Illustration by* **NILANJAN DAS**

On April 8, when the Supreme Court delivered a landmark verdict in *Tamil Nadu vs Governor of Tamil Nadu*, **it once again laid bare fundamental questions about India's federal structure, the limits of gubernatorial discretion and who ultimately decides when a constitutional office has overstepped its bounds. The apex court invoked its extraordinary powers under Article 142 of the Constitution, which equip it to pass a decree or order to "do complete justice". Vice President Jagdeep Dhankhar, whose stint as governor in West Bengal regularly pitted him against Chief Minister Mamata Banerjee, promptly denounced Article 142 as a "nuclear missile against democratic forces".**

The case in Tamil Nadu related to the 10 bills that had been pending with Governor R.N. Ravi since 2022. In a sweeping 415-page judgment, the court declared these "deemed to have been assented to". Passed by the Tamil Nadu assembly, the governor had withheld them—neither granting assent, returning them for reconsideration, nor forwarding them to the President—amounting, in effect, to a "pocket veto". An earlier intervention by the apex court had seen Ravi sending the bills back for reconsideration. When the assembly resubmitted the bills, the governor referred them to the President. At the time of the judgment, the President had given assent to one of the 10 bills, withheld assent to seven, and had yet to decide on the remaining two.

The Supreme Court judgment made it clear that governors cannot wield a veto or a pocket veto on bills passed by the state legislature. Nor can they first return a bill to the assembly and then refer it to the President. It must be one or the other, and referral is allowed only under clearly defined circumstances. The President, too, cannot withhold assent to state bills arbitrarily but must give a constitutionally valid reason, like a conflict with existing central laws. Crucially, the court imposed specific timelines for the governor and the President to act on state bills, depending on whether they were assenting, returning or referring them, as the Constitution is silent on any such deadline.

It prescribed that governors should ordinarily act on bills "forthwith" and within one month if following ministerial advice. If withholding assent, the governor must return the bill with recommendations within three months. For bills presented after reconsideration, the governor must give assent within a month. The judgment also clarified that governors cannot reserve bills for the President after the legislature has reconsidered and passed them again. Justice J.B. Pardiwala, writing for the bench, observed that the phrase "shall not withhold assent therefrom" in Article